

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 27, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV01708

REXEL USA, INC. v. McGRATH

MOTION TO BE RELIEVED AS COUNSEL

The unopposed motion to be relieved is granted. If there is no opposition to the tentative, the Court will sign the proposed order submitted by counsel. Once the order is signed, counsel is directed to serve copies of the signed order, with the next hearing date, on McGrath Electric, Inc. and separately upon Eric McGrath and Adell McGrath as individual defendants, also transmitting the order to every known McGrath email address, with the service proof evidencing same, e-filed into the court docket.

No. 25CV02148

GARCIA v. LITTLE CAESAR’S OF SANTA CRUZ INC.

**(UNOPPOSED) PLAINTIFF’S MOTION FOR ORDER GRANTING RELIEF
FROM WAIVER OF JURY TRIAL**

The unopposed motion is granted.

“If a party has waived the right to a jury trial under section 631, subdivision (g) of that statute gives the trial court discretion to grant relief from such waiver: ‘The court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury.’ ‘In exercising its discretion, the trial court may consider delay in rescheduling jury trial, lack of funds, timeliness of the request and prejudice to the

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litigants.’ [Citation.] Prejudice to the court or its calendar are also relevant considerations. [Citations.] [¶] A trial court’s discretionary decision to grant or deny relief under section 631, subdivision (g) will not be disturbed absent an abuse of discretion. [Citation.]”

(*TriCoast Builder, Inc. v. Fonnegra* (2022) 74 Cal.App.5th 239, 245.)

Despite proper service, defendant did not file any opposition establishing it would be prejudiced if relief were granted. Lack of an opposition may also be considered a concession that the motion is meritorious. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Therefore, the court grants the motion and plaintiff is ordered to post jury fees no later than September 4, 2026.

No. 23CV02345

SANTA CRUZ COUNTY REGIONAL TRANSPORTATION COMMISSION v. TROUT GULCH, et al.

BETTY 41st, LLC’S MOTION TO ENFORCE DISCOVERY ORDER AND FOR MONETARY AND ISSUE SANCTIONS

Betty 41st, LLC previously brought a motion to compel further production of certain document production requests: nos. 27, 28, and 34. (MPA at p. 9.) Originally, the RTC responded to the document production request with objections and an invitation to meet and confer regarding “the scope” of the request. The RTC also represented that it was “in the process of performing a diligent search and reasonable inquiry in an effort to comply” with the request, and that it would “produce any potentially responsive documents.” In a supplemental response, the RTC indicated that it would produce a privilege log, which it did produce on June 2, 2026.

The court’s June 15, 2026 order relating to the motion to compel stated, in part: “It is not clear from the moving papers, the opposition and reply what outstanding discovery issues remain. RTC states that it has complied with the requests and the motion is moot. . . . If RTC has produced all responsive documents, it needs to also serve (if it has not done so) a verified **statement of compliance** pursuant to Code of Civil Procedure section 2031.210, subdivision (a).” (Emphasis added.)

RTC served discovery verifications on June 18, 2026, executed by RTC’s executive director but did not otherwise further respond to the document production requests. However, RTC did not serve a statement of compliance, which would have included one of the following